

MARKETING AGREEMENT

Performance Media Management and Measurement Agreement

A fictional contract-development document. It is not a signed legal instrument and contains no real company or human signature.

Contract ID	MKT-002
Customer	Cedar Retail Pvt Ltd (40 stores)
Supplier	PulseReach Performance Media India Pvt Ltd
Execution status	EXECUTED
Document date	2026-09-30
Commercial model	fixed management fee; advertiser media spend is pass-through and not a commitment

Service purpose

Search, social, retail media, audience planning, bid management, attribution, and monthly performance reporting. The schedules and open matters below describe the services, fees, approvals, and obligations. Optional or variable amounts are separately identified and are payable only under their stated conditions.

1. Parties, term and interpretation

This Agreement is between Cedar Retail Pvt Ltd ("Cedar"), operating a network of 40 retail stores in India, and PulseReach Performance Media India Pvt Ltd ("Supplier"). Each is a Party and together they are the Parties. Supplier will perform the services in accordance with the service schedules and approved work orders.

Term fact	Contract detail
Effective date	2025-01-01
Expiration date	2026-12-31
Renewal	No automatic renewal; renewal order must be signed 45 calendar days before expiry
Calendar notice	45 calendar days before expiry
Taxes	All prices are exclusive of GST; statutory GST is added to valid invoices

Definitions

Business day means a day other than a Sunday or public holiday in the place of performance. Store means a Cedar-operated retail location. Approved means recorded in Cedar's purchase order, change order, or named approval workflow. If a date or fee is omitted, it remains subject to written confirmation.

Term mechanics

The contract expires on the stated date unless ended earlier under the termination provisions. Renewal or extension language does not create a fee commitment beyond the stated committed value.

2. Scope and operating schedule

Search, social, retail media, audience planning, bid management, attribution, and monthly performance reporting.

Supplier responsibilities

Supplier will maintain appropriately trained personnel, legally required licences, operational records, continuity procedures, and a single accountable service lead. Cedar will provide timely forecasts, access, briefs, approvals, and purchase orders within its control.

Operating dimension	Schedule
Coverage	Cedar's 40-store network and the facilities, lanes, channels, or campaigns expressly listed in the exhibits
Cadence	Weekly operating review with monthly scorecard; exceptions are logged with owner and due date
Acceptance	A deliverable, shipment, report, or milestone is accepted when Cedar records acceptance or does not raise a material defect within the stated review window
Out of scope	Any service, location, media, supplier, or spend not expressly in the scope or an approved change order

Service evidence

Supplier will retain source records sufficient to evidence delivery, quality, spend, approvals, and exceptions for at least 24 months after the relevant service or longer if law requires.

3. Commercials, fees and payment

The amounts below are stated ex-GST. A fixed component forms part of the committed fees only when this Agreement states a definite amount. Usage, pass-through, media, incentive, fuel, and supplier charges require the conditions described in the schedules and are excluded from the committed fees.

Fixed fee component	Amount ex-GST
Performance media management, 24 months	INR 3,000,000.00
Committed fees	INR 3,000,000.00

Annual or period fees

Period start	Period end	Amount ex-GST
2025-01-01	2025-12-31	INR 1,500,000.00
2026-01-01	2026-12-31	INR 1,500,000.00

Payment

Management fee monthly in advance; media invoices supported by platform statements and Cedar IO; 30 days; GST extra.

Optional or variable charges

Approved media spend forecast at INR 4800000.00, funded through campaign insertion orders; Creative adaptation per asset outside monthly allocation; Data clean-room or measurement vendor charges at cost

4. Service levels, deliverables and remedies

Campaign launch within 3 business days after complete assets and IO; daily pacing alerts; monthly report by fifth business day.

Performance management

Supplier will provide the records needed for the monthly scorecard. A missed metric is first subject to root-cause analysis and corrective action. Credits or service remedies apply only where the relevant exhibit or approved order states a remedy and never convert optional spend into a commitment.

Escalation

Critical service or brand-impacting incidents must be escalated to Cedar within the response window in the applicable exhibit, with containment, owner, next update, and closure evidence. Repeated misses may trigger a service-improvement plan or termination rights.

Control	Requirement
Reporting	Monthly scorecard with metric definition, actual, target, variance, and evidence link
Incident record	Timestamp, affected stores or campaigns, severity, containment, corrective action, closure date
Acceptance	Cedar may reject a materially non-conforming deliverable and provide one consolidated defect list
Remedy boundary	No credit is due for a metric outside Supplier control where Cedar failed to provide required input or approval

5. Governance, data, confidentiality and intellectual property

Weekly pacing call, monthly channel review, quarterly incrementality review; Cedar retains account ownership.

Governance forum

The named operating leads maintain an action log. Commercial issues go to the monthly review; unresolved matters older than 10 business days escalate to the Cedar sponsor and Supplier account executive. Decisions that change scope, fees, dates, or rights require the change process on page 7.

Topic	Contract rule
Confidentiality	Each Party protects the other's non-public business, store, customer, pricing, and operational information and uses it only to perform this Agreement.
Privacy	Supplier processes personal data only on Cedar's documented instructions, applies access controls, reports suspected incidents promptly, and returns or deletes data at exit subject to law.
IP	Cedar owns its materials, data, marks, and briefs. Supplier retains pre-existing tools. Deliverables paid for by Cedar are assigned or licensed to Cedar as stated in the approved order.
Approvals	Only Cedar's named business owner may approve final deliverables, budgets, media insertion orders, or material changes.

6. Change control, liability and termination

Changes

A change is effective only when the Parties record the requested change, reason, scope, price effect, schedule effect, assumptions, and approvers in a signed amendment, statement of work, change order, or purchase order expressly incorporated into this Agreement.

Provision	Operative rule
Price escalation	Management fee fixed for term; media rates and third-party measurement charges vary by approved order.
Liability	Each Party is responsible for its own negligence, wilful misconduct, breach of confidentiality, data protection breach, and infringement. Any cap or exclusion applies only as expressly stated in the executed agreement and does not excuse payment for accepted services.
Termination for cause	A material breach not cured within 30 days after written notice permits termination; immediate termination applies where law, safety, fraud, insolvency, or confidentiality risk requires it.
Exit	Supplier cooperates with transition, returns Cedar material and data, completes paid work in progress, and provides final records and open-issue status.

Notice calculation

The stated notice period is measured in calendar days and must be delivered before the relevant expiry date.

7. Exhibits, amendments and execution record

Exhibit A channel scope; Exhibit B measurement definitions; Exhibit C approval and IO controls; Exhibit D data handling.

Amendments and open matters

2026-04-10 signed amendment clarified that media spend is pass-through and cannot be treated as a committed fee.

Open matters

Expiry is 2026-12-31 and the 45-day renewal notice falls within the current quarter; Cedar must decide whether to renew.

Execution record

Executed on 2024-12-18; amendment signed 2026-04-10.

Execution note	This fictional development document intentionally contains no human signature, seal, or handwritten mark.
Document control	Only a signed amendment, statement of work, change order, or purchase order expressly incorporated into this Agreement can change its commercial or operational terms.